

Court No. - 36  
Case :- WRIT - C No. - 36568 of 2015  
Petitioner :- Ashish Kesarwani  
Respondent :- State Of U.P. And 3 Ors.  
Counsel for Petitioner :- Vineet Kumar Sahu  
Counsel for Respondent :- C.S.C.,Mahboob Ahmad

**Hon'ble Rajes Kumar,J.**

**Hon'ble Shamsher Bahadur Singh,J.**

Heard Sri Vineet Kumar Sahu, learned counsel for the petitioner and Sri Mehboob Ahmad,, learned counsel appearing on behalf of respondent no.4.

It is a case of electricity dues. The petitioner contended that on an vigilance raid for checking of the electricity connection, a penalty of Rs.40,000/= has been imposed upon the petitioner on detection of some irregularities in the electricity connection. The petitioner deposited a sum of Rs.12,000/= . It is the case of the petitioner that without giving any opportunity to deposit remaining amount of Rs.28,000/=, a recovery notice demanding an amount of Rs.44,000/= has been issued against the petitioner. However, petitioner states that he is prepared to pay the bill amount, provided he is extended facility to deposit the same in easy instalments.

Respondents, represented by their counsel, have no objection to the above in view of Clause 6.14 of the U.P. Electricity Supply Code, 2005.

In view of the above, as a special case, we direct that the respondents, their agents, servants, employees, officers etc. shall not proceed to recover the amount in question or proceed with attachment /auction sale etc. (subject matter of this writ petition) provided the petitioner makes deposits as follows:

1. Petitioner shall make deposit of the claimed amount in four monthly instalments. The first instalment will be deposited within fifteen days from today, which will be 50% of the amount demanded and balance shall be paid in three equal monthly instalments, which will commence from the next date of deposit of the 50% of the total amount to be deposited.
2. Any amount already deposited under above account shall be duly adjusted and taken care of.
3. In case, petitioner makes payments as per schedule prescribed above and comply with all the conditions contained herein, no amount as collection charges shall be recovered.
4. But in case petitioner commits default of any of the above conditions, this order shall stand vacated automatically on the date of default itself without further reference to the Court and the petitioner will become liable to pay collection charges also.
5. If the petitioner feels aggrieved against the calculation given in the

account statement, he may seek his remedy, without being prejudiced by this order in any manner, as may be available in law.

6. In case on account of selfsame bill earlier writ petition has been proceeded or auction has already taken place, the order, which has been passed hereunder, will not be operative.

Writ petition is disposed of finally on the above directions.

No order is passed as to costs.

Order Date :- 7.7.2015

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